Partner Service Agreement

Version 1.1

1. Parties and definitions

1.1 This Partner Service Agreement ("Agreement") is between Owen Holdeman, an individual doing business as Ghostwright Web Development, an Arizona sole proprietorship ("Ghostwright"), and the business named as Partner in Exhibit B ("Partner"), effective on the date Ghostwright confirms receipt of Partner's signed copy under Section 16.8 ("Effective Date").

1.2 In this Agreement:

Client means a business that Partner serves and for which Partner orders a Site.

Site means a website that Ghostwright builds and hosts for a Client under this Agreement.

Intake means the completed intake form for the Client's business, hosted on a subdomain of Partner's website.

Greenlight means the moment Ghostwright holds both a complete Intake and payment in full of the Setup Fee for a Site.

Approval means Partner's written approval of a Site version, or a version treated as approved under Section 4.4.

Go-Live means the Site is complete and publicly available on the Client's own domain.

Billing Start Date means the earlier of Go-Live or, if launch is delayed more than 14 days after Approval for reasons outside Ghostwright's control, the 15th day after Approval.

Active Site means a Site that has reached its Billing Start Date and has not been cancelled.

Business Day means Monday to Friday, excluding U.S. federal holidays.

Setup Fee and **Monthly Fee** mean the fees in Exhibit A.

Cancellation Notice Date means the date Ghostwright receives Partner's written notice cancelling a Site.

Cancellation Date means the last day of the calendar month that contains the Cancellation Notice Date.

Buyout Window and **Buyout Steps** have the meanings in Section 11.

Source Code has the meaning in Section 11.8.

Launch Checklist means the short email Ghostwright sends Partner under Section 5.5, listing the tests it ran and the results.

Ghostwright-Caused Form Failure has the meaning in Section 8.14.

2. Services and scope

2.1 Ghostwright will design, build, host, and maintain each Site on a white-label basis, under Partner's brand, for Partner's Clients.

2.2 Each Site includes:

- custom design and code written from scratch, with no templates, page builders, or reused starter code;
- a mobile-responsive layout;
- a dedicated page for each major service the Client offers, with smaller related services grouped on the same page;
- contact forms that use EmailJS, set up as described in Section 8;
- SEO-ready structure and meta tags; and

- hosting and SSL.

2.3 Not included, and quoted separately: new features and integrations (other than the simple tracking described in Section 8.4), e-commerce, additional major service pages after launch, redesigns, and third-party subscriptions or tools.

2.4 Partner sets its own prices, bills its Clients, and owns the Client relationship. Ghostwright bills only Partner.

2.5 Ghostwright may use subcontractors and third-party services (such as hosting and form tools) but remains responsible for its own performance.

2.6 There is no minimum volume, and neither party is required to work exclusively with the other.

2.7 Images. Ghostwright may use licensed stock images and AI-assisted tools to prepare images for a Site, within the choices the Client makes in the Intake. Ghostwright may improve the quality of images and logos the Client supplies, such as sharpening, brightening, cropping, resizing, converting file types, and cleaning up minor flaws, but will not change what an image shows. Ghostwright will not present a generated image as a photo of a Client's completed work, team, or customers, and will not create reviews or testimonials. Generated and stock images are licensed for use on the Site, are not exclusive to the Client, and are not covered by Section 13.7.

2.8 Ghostwright manages each Site and makes all edits to it while it is in service. Partner and the Client do not receive administrative access to the Site or to Ghostwright's hosting accounts and tools. Ghostwright alone views its hosting account. Partner may ask Ghostwright for performance information about a Site, and Ghostwright will provide it if possible.

3. Ordering, Greenlight, and delivery

3.1 A Client completes the Intake on Partner's subdomain, and the answers reach Ghostwright by email. Sending a Client to the Intake is Partner's order for a Site. If Partner did not authorize a completed Intake, Partner must tell Ghostwright within 2 Business Days after Ghostwright sends the Setup Fee invoice for it, and Ghostwright will cancel that invoice. Ghostwright may copy Partner on each Intake it receives. Partner will point a subdomain of its website to the Intake as Ghostwright instructs. The Intake includes the authorization confirmation described in Section 12.3.

3.2 When Ghostwright receives a complete Intake, it invoices the Setup Fee of $149 for that Site. Ghostwright starts coding only after the Setup Fee is paid in full. That moment is the Greenlight.

3.3 Ghostwright will deliver the first version of the Site within 5 to 7 Business Days after Greenlight. If Partner or the Client is late with content, answers, or access, the timeline moves back by the same number of days.

3.4 The Setup Fee is non-refundable once work begins. This applies even if Partner or the Client cancels, stops responding, or never launches the Site.

3.5 If Partner or the Client does not respond for 30 consecutive days after Ghostwright's written request, the build is treated as abandoned. Section 10.5 then applies to the work product.

4. Build revisions

4.1 Each Site includes two rounds of revisions after the first version is delivered.

4.2 The process is:

1. Ghostwright delivers version 1.
2. Partner sends one consolidated written list of requested changes.
3. Ghostwright delivers version 2 within 3 Business Days of receiving the list.
4. Partner may send one more consolidated list.
5. Ghostwright delivers version 3 within 3 Business Days. Version 3 is final.

4.3 A revision can include major changes to what Ghostwright already delivered, such as adding or removing images, adding or removing services and their pages, and updating hours, contact details, text, colors, spacing, and the layout of existing pages. New features, new integrations, and redesigns are not revisions and are quoted separately.

4.4 Partner's feedback is due within 5 Business Days after each delivery. If Ghostwright receives none, that version is treated as approved and Ghostwright proceeds to launch.

4.5 Feedback must come from Partner's authorized contacts listed in Exhibit B, not from the Client directly, unless Partner has chosen a direct communication option under Section 9.6, in which case the Client may send feedback directly with Partner copied.

4.6 A round is one consolidated list. Requests sent piecemeal count together as one round, and any new list after a version is delivered counts as a new round.

4.7 Each additional round costs $75 flat. Ghostwright invoices it when the round is requested and starts work once it is paid.

5. Launch, domain, and Go-Live

5.1 After Approval, Ghostwright schedules the launch. Launch requires access to the Client's domain settings.

5.2 The Client owns its domain and registers it in the Client's own account. Ghostwright gives Partner the exact DNS records and instructions, and Partner is responsible for getting the Client to complete them. Partner may ask Ghostwright for technical help with DNS, and Ghostwright will deal only with Partner, unless Partner has chosen a direct communication option under Section 9.6. If the Client gives Ghostwright temporary access to its domain registrar account for setup, Section 14.5 applies.

5.3 Before launch, Ghostwright hosts a private preview of the Site at no charge.

5.4 If launch is delayed more than 14 days after Approval for reasons outside Ghostwright's control (for example, the Client has not given domain access), the Billing Start Date is the 15th day after Approval, even though Go-Live has not happened. The Monthly Fee then starts under Section 6.3.

5.5 Launch Checklist. Before Go-Live, Ghostwright will:

- submit a test through each contact form and confirm the message reaches the intended recipient address;
- ask Partner (or the Client through Partner) to confirm that the test message was received; and
- email Partner the Launch Checklist, a short list of the tests it ran and the results.

Partner will confirm the Launch Checklist by replying to that email within 2 Business Days after Ghostwright sends it. If Ghostwright receives no reply in that time, Ghostwright may launch and the checklist is treated as confirmed. The completed Launch Checklist is the record of what was working at launch.

6. Fees and payment

6.1 Partner pays the Setup Fee for each Site and the Monthly Fee for each Active Site, as set out in Exhibit A.

6.2 The Setup Fee is invoiced when Ghostwright receives a complete Intake and is due before work begins.

6.3 The Monthly Fee starts on the first day of the calendar month after the Billing Start Date. Ghostwright does not charge for the partial month in which the Billing Start Date falls.

6.4 Ghostwright sends Partner one bundled invoice on the 1st of each month, through Wave or a successor tool. The invoice lists each Active Site whose Monthly Fee has started and covers that month. It is due by the 8th.

6.5 Ghostwright may offer card or bank autopay. Payment methods and any other payment details are stated on each invoice.

6.6 If an invoice is not paid by the 15th, Partner owes a flat late fee of $15 per invoice, not per Site. Ghostwright may send automatic reminders.

6.7 If an invoice is still unpaid 30 days after its due date, Ghostwright will send Partner written notice. Five days after that notice, Ghostwright may suspend the Sites on that invoice until it is paid. If it is still unpaid 60 days after its due date, those Sites are treated as cancelled under Section 11.

6.8 Partner is responsible for telling its Clients about any suspension. Ghostwright is not liable for losses caused by a suspension made under Section 6.7.

6.9 Ghostwright may change the Monthly Fee for future months on 30 days' written notice. Setup Fees for Sites already greenlit do not change. The new fee applies starting with the first monthly invoice under Section 6.4 that is dated at least 30 days after the notice takes effect under Section 16.4. If Partner objects, it may cancel affected Sites by written notice that Ghostwright receives before that invoice date, and Ghostwright will not invoice the new fee for those Sites.

6.10 Fees exclude taxes. If Ghostwright is required to collect any sales, use, or transaction privilege tax, Partner will pay it. Partner is responsible for taxes on its own resale of the Sites.

6.11 If Partner disputes an invoice, it must tell Ghostwright before the due date and pay the undisputed part. Section 7 covers unpaid Client accounts.

6.12 Any credit Ghostwright owes Partner under this Agreement (including under Section 8.14) is applied against Partner's next invoice.

7. Clients who do not pay Partner

7.1 Partner is responsible for collecting from its Clients. Partner remains responsible for the Setup Fee of every Site it greenlights.

7.2 If a Client has not paid Partner for a Site, Partner may tell Ghostwright in writing, before the invoice due date, which Site and Client are unpaid. Ghostwright will then remove that Site's Monthly Fee from the current invoice. If the invoice is already paid, Ghostwright will credit the amount to the next invoice or refund it, at Ghostwright's option.

7.3 The rest of the invoice stays due by its due date. The late fee in Section 6.6 applies only to the undisputed amount.

7.4 The unpaid Site then follows the schedule in Section 6.7, counted from the invoice's original due date: written notice to Partner at 30 days, suspension 5 days after that notice, and cancellation at 60 days. Partner is responsible for telling the Client. If the Client pays Partner before cancellation, Partner pays the Monthly Fees that were removed, and Ghostwright restores the Site.

7.5 Ghostwright may ask for reasonable confirmation of an unpaid Client. If Partner makes repeated or unsupported claims, Ghostwright may end this right by written notice.

8. Support, content edits, and contact forms

Support and edits

8.1 The Monthly Fee covers hosting, SSL, infrastructure, technical support, and content edits for each Active Site.

8.2 Content edits are changes to text, images, hours, service areas, and contact information. After launch, Ghostwright will use reasonable efforts to complete a content edit within 2 to 3 Business Days after receiving a complete request from Partner. This is a target, not a guarantee. If a request is unclear or Ghostwright needs more information, the target starts when Ghostwright has what it needs.

8.3 Larger work, such as a redesign, is not a content edit and is quoted separately. Once Partner accepts the quote, pays any amount due before work starts, and Ghostwright has what it needs, Ghostwright will use reasonable efforts to complete a redesign within 3 to 5 Business Days. Ghostwright may state a different timeline in the quote for unusually large work. These timelines are targets, not guarantees.

8.4 New major service pages, new features and integrations (other than simple tracking), and redesigns are not content edits. Ghostwright quotes them separately. Simple tracking is included in the Monthly Fee and is handled as a content edit. It means adding a standard tracking tag or conversion snippet that the Client's own account provides, such as Google Ads conversion tracking, Google Analytics, or a Meta Pixel. Ghostwright installs the tag the Client supplies. Partner and the Client are responsible for the tracking account, the ad platform's rules, what the tag collects, and any privacy notice or consent it requires, and Ghostwright does not promise that the tracking will report accurately. Custom event setups, tag-manager or server-side configurations, consent banners, and integrations with other systems are not simple tracking and are quoted separately.

8.5 Requests must come from Partner's authorized contacts listed in Exhibit B. Ghostwright does not take requests from Clients, unless Partner has chosen a direct communication option under Section 9.6.

8.6 Ghostwright will use commercially reasonable efforts to keep each Site online but does not guarantee uptime. Outages of third-party services, and short maintenance windows, are not a breach.

8.7 Ghostwright does not monitor the Client's domain registrar account, EmailJS account, or other Client accounts after launch, and may not know if one has a problem or is compromised.

8.8 Prompt notice. Partner will tell Ghostwright as soon as it learns of any problem with a Site, including a form that is not delivering messages, a Site that is down or displaying incorrectly, wrong or outdated information, a limit or billing problem on a Client account, or a suspected compromise of any account connected to a Site. Partner will send the notice by email to Ghostwright's notice address in Exhibit B. Quick notice lets Ghostwright fix problems sooner and protects the Client's experience. Where this Agreement ties a remedy to a problem, a delay in giving notice can reduce or end that remedy to the extent the delay made the problem worse.

Contact forms and EmailJS

8.9 Every contact form on a Site uses EmailJS.

8.10 The Client, through Partner, creates and owns the EmailJS account. Ghostwright either uses temporary access to set up the forms or gives Partner written setup instructions. Ghostwright uses any access only for setup and does not keep the credentials. Partner or the Client may change or revoke access at any time.

8.11 Standard setup. Ghostwright includes a honeypot spam field and a submission cooldown on each contact form.

8.12 Partner and the Client are responsible for the EmailJS account, including its plan, usage limits, billing, upgrades before a limit is reached, recipient addresses, settings, and security. EmailJS sets its own limits, prices, and terms, and may change them. Partner and the Client will keep the account and its billing and recipient details current.

8.13 Ghostwright is not responsible if a form stops working or is limited for a reason outside Ghostwright's code and configuration. Examples include reaching a plan limit, a plan or price change, an account suspension or lapse, a wrong or outdated recipient address, a change to or discontinuation of EmailJS's service, a compromised account, and spam that gets past the standard setup in Section 8.11.

8.14 Ghostwright is responsible for a **Ghostwright-Caused Form Failure**, meaning a form failure caused by an error in code or configuration that Ghostwright wrote or set up, such as a form that sends submissions repeatedly or sends them to the wrong recipient. For a Ghostwright-Caused Form Failure, Ghostwright will:

- correct the error at no charge; and

- if the error caused the EmailJS account to reach its plan limit, credit Partner against its next invoice for the cost of one month of the plan upgrade needed to keep the forms running during the billing period in which the failure happened. Partner sends Ghostwright the EmailJS receipt.

Partner or the Client pays for any later months it chooses to stay on the upgraded plan and is responsible for downgrading. The correction and the one-month credit are Ghostwright's only obligations for the failure, and Section 13.4 applies to it. Partner must give notice under Section 8.8.

8.15 Before launch, Ghostwright tests each form under Section 5.5.

8.16 If EmailJS changes or discontinues a feature, quota, or price that affects the forms, Ghostwright will tell Partner when it learns of the change. Ghostwright will quote any rework needed to move the forms to a different provider, unless the change was caused by a Ghostwright-Caused Form Failure.

9. White-label and non-solicitation

9.1 Ghostwright delivers each Site and Intake under Partner's brand. It will not add its own name or credit to a Site or Intake unless Partner agrees in writing and will use Partner's name and email address in everything a Client sees.

9.2 While this Agreement is in effect, Ghostwright will not solicit, market to, or upsell Partner's Clients, will contact them only as Section 9.6 allows, and will not do work directly for them on Sites built under this Agreement. When this Agreement ends, this Section 9.2 stops applying, and Ghostwright may contact any business as an independent company.

9.3 If a Client contacts Ghostwright directly about a Site built under this Agreement, Ghostwright will refer the Client back to Partner.

9.4 Section 9.2 does not restrict (a) Ghostwright's general advertising and public website, if not aimed at Partner's Clients, or (b) businesses that were already clients of Owen Holdeman's separate direct web design business (Cyberhawk), or of Ghostwright, before Partner sent their Intake.

9.5 Ghostwright may show a Site, with a link to it, and the Client's business name and logo in its portfolio and marketing. Partner may withdraw this permission, for one Site or for all Sites, at any time by written notice. Partner confirms it has the Client's permission to give it. Ghostwright will not publish a Client's non-public information in its portfolio or marketing.

9.6 Communication options. Partner chooses how Ghostwright communicates with Clients, for each Client or for all Clients, and records the choice in Exhibit B or in writing:

- **Option 1, Partner only (the default).** Partner is the only point of contact. Ghostwright does not contact Clients.
- **Option 2, Partner's web team.** Partner gives Ghostwright an email address on Partner's own domain (for example, developer@partnerdomain.com). Ghostwright uses it to work directly with the Client about delivery matters only (intake questions, feedback, revisions, DNS help, and content edits), as part of Partner's team and under Partner's name. Ghostwright's own name does not appear in these messages.

9.7 In every option: (a) Ghostwright invoices only Partner, and Partner alone bills the Client; (b) Ghostwright never solicits, markets to, or upsells Clients, and does not discuss Partner's pricing, margins, or this Agreement with them; (c) anything that changes the scope or the price, such as extra revision rounds, new pages, features, or redesigns, is quoted to and approved by Partner, not by the Client; (d) the timelines in Sections 3, 4, and 8 do not change; and (e) Partner stays responsible for the Client relationship and for having the Client's agreement to be contacted directly.

9.8 Under Option 2, Partner will give Ghostwright a shared mailbox or delegated access that Partner can see and revoke at any time, and will not require Ghostwright to hold Partner's own login credentials. Ghostwright will use the address only for delivery matters and will not use its own name in messages to Clients. Partner is responsible

for how it describes the arrangement to its Clients, and Ghostwright will not make false statements about its role.

9.9 Partner may change the option for a Client, or for all Clients, by written notice. The change applies to messages sent after Ghostwright receives it. Ghostwright may decline to start an option it cannot reasonably support, but will not withhold Option 1. Option 2 carries no extra fee.

10. Ownership, IP, and source code

10.1 Ghostwright owns all rights in each Site's design and source code, and in its reusable tools that are not specific to a Client, and keeps the source code at all times, except as transferred in a buyout under Section 11. Partner and the Client use the Site as a managed service and do not own its source files while it is in service.

10.2 While a Site is active and paid for, Ghostwright gives Partner and the Client a non-exclusive, non-transferable license to use the Site on the Client's domain. Neither may copy or reuse the Site's design or code for any other website.

10.3 The Client owns its domain and its own content, meaning the text, logos, and photos it supplies. Partner gives Ghostwright permission to host and display that content and to use it to build and maintain the Site, and confirms it has the right to give that permission.

10.4 Ghostwright keeps its general know-how, techniques, and skills.

10.5 For an abandoned or cancelled build, Ghostwright keeps its work product and may reuse the design and code. Before any reuse, Ghostwright will remove the Client's name, logo, photos, reviews, contact details, and other identifying content.

10.6 Third-party components in a Site stay under their own licenses.

11. Cancellation and buyout

11.1 Partner may cancel any Site at any time by written notice to Ghostwright. There is no cancellation fee.

11.2 A cancellation takes effect on the Cancellation Date, the last day of the calendar month in which Ghostwright receives the notice. The Site stays online through the Cancellation Date and then goes offline. It is not invoiced for later months. The current month has already been invoiced and is not refunded.

11.3 On cancellation the Client keeps its domain and its own content, and Ghostwright keeps the source code. Setup Fees and prepaid months are not refunded. Ghostwright removes its hosting connection for the Site. Ghostwright gives Partner instructions for the Client to remove the DNS records that point the domain to the Site, and Partner is responsible for getting the Client to do so.

11.4 Buying the Source Code. Partner may buy a Site's Source Code while the Site is active, or within the Buyout Window described below after cancelling it, for $3,000 per Site, and may direct that it be assigned to the Client. The Client may also buy it if Partner consents in writing and the purchase goes through Partner. For an active Site, Partner may complete the Buyout Steps at any time. For a cancelled Site, Partner must complete the Buyout Steps within 30 days after the Cancellation Notice Date (the "Buyout Window"). The 30 days start on the day Ghostwright receives the cancellation notice, not on the Cancellation Date.

11.5 Buyout Steps. Partner arranges a buyout only when all three of these have happened (for a cancelled Site, by the end of the 30th day of the Buyout Window):

1. Ghostwright has received Partner's written buyout request;
2. Partner has signed the buyout terms that Ghostwright provides; and
3. Ghostwright has received the $3,000 in cleared funds.

Ghostwright will provide the buyout terms promptly after it receives the request. A buyout of a cancelled Site that is requested but not completed by the end of the Buyout Window is not arranged.

11.6 Expiry. When the Buyout Window for a cancelled Site ends, the opportunity to buy that Site's Source Code under this Section expires. This is true whether or not the live Site has been taken down. A Site that stays online does not extend the Buyout Window. Ghostwright may agree to an extension only in writing.

11.7 Live Site. The Site stays online only through the Cancellation Date, regardless of the Buyout Window. If the cancellation notice arrives late in a month, the Site may go offline before the Buyout Window ends. A buyout of a cancelled Site does not keep it online, and the buyer is responsible for hosting. A buyout of an active Site does not cancel it. The buyer owns the Source Code as described in Section 11.8. Ghostwright keeps hosting and maintaining the Site, and the Monthly Fee continues, until Partner cancels under Section 11.1, so Partner may move the Site to its own hosting whenever it chooses.

11.8 Delivery. After Ghostwright has the signed buyout terms and cleared payment, Ghostwright assigns ownership of the Site's Source Code, as it stands on the Cancellation Date (or, for an active Site, on the date Ghostwright prepares the delivery), to Partner (or to the Client, as Partner directs) and delivers it within 10 Business Days. "Source Code" means the Site's files and code that can be packaged (such as in a ZIP) and moved or deployed elsewhere. It excludes third-party components, the Client's content (which the Client already owns), credentials, and Ghostwright's hosting account, other accounts, and shared infrastructure. The Source Code is delivered as is, with no hosting, support, or warranty. Changes Ghostwright makes to an active Site after the delivery date are not part of the buyout. The buyer may use, modify, host elsewhere, and reuse the Source Code for any purpose, subject to third-party licenses and rights, and the restriction on copying or reusing the Site's design and code in Section 10.2 no longer applies to the Source Code the buyer receives. Help requested after a buyout is new paid work under a separate quote and creates no refund or credit against the buyout price.

11.9 Backup. After a Site is cancelled, Ghostwright keeps a backup, including the Client's content, until 45 days after the Cancellation Date, or until a completed buyout has been delivered if that is later. Ghostwright keeps the backup only so a buyout can be completed. Keeping it creates no refund right and does not include any ongoing service. After that, Ghostwright removes the Client's identifying content from its retained copy under Section 10.5.

11.10 The buyout price is the same whether a Site is new or old, active or cancelled, and is not reduced by fees Partner has already paid. If Ghostwright ends this Agreement under Section 15.3, Partner may complete the Buyout Steps for any or all affected Sites during the notice period and for 30 days after it ends.

12. Partner responsibilities

12.1 Partner will send accurate, complete Intakes and Client content on time.

12.2 Materials and instructions. Partner is responsible for the accuracy, authorization, and rights associated with the materials and instructions that it or its Client supplies, including images, logos, video, copy, and instructions. Ghostwright is responsible for its own work and its own conduct. If both parties contributed to a problem, each is responsible for its own share. Ghostwright is responsible if it knowingly uses material outside the authorization or instructions it received, or otherwise contributes to a problem through its own conduct.

12.3 Authorization confirmation. The Intake requires the person completing it to check a confirmation that the information is accurate, that they own or have permission to use the logos, photos, text, and other material they supply, and that they allow it to be used on the Site. The confirmation covers all material supplied in the Intake. Material the Client or Partner sends afterward is covered by the same confirmation, and sending it renews the confirmation for that material. Partner confirms that it obtains this authorization from each Client, and that the Client's submission of the Intake is made with Partner's authority. Ghostwright may rely on the confirmation and does not have to verify it. Ghostwright receiving an item is not proof that permission exists. Ghostwright may decline to use, or may remove, an item it reasonably believes is not authorized.

12.4 Partner confirms that it has the Client's permission for Ghostwright to build and host the Site, and that the content it supplies follows applicable law.

12.5 Partner handles all Client communication, including quotes, approvals, support requests, billing, and notices about suspension or cancellation.

12.6 Partner alone decides how it markets, prices, and bills the Sites. Partner is solely responsible for complying with the laws and regulations that apply to it, including any rules for its own industry on advertising, referral fees, or inducements (for example, insurance-department rules for an insurance agency). Ghostwright gives no legal or insurance advice.

12.7 Licensing, insurance, and credential statements shown on a Site come from the Client or Partner. Ghostwright does not verify them.

12.8 Partner and the Client are responsible for their own privacy notice and for how they handle the leads and information that come through the forms, and for any disclosure or consent that tracking on the Site requires. Ghostwright is responsible for its own handling and configuration.

12.9 Partner will keep the contact details in Exhibit B up to date.

13. Warranties, defects, liability, and indemnity

13.1 Ghostwright will perform the services in a professional and workmanlike manner. Otherwise the services are provided as is. Ghostwright does not promise any search ranking, traffic, leads, or revenue.

13.2 Defects. Ghostwright will correct, without additional charge, defects in its work that are caused by Ghostwright's failure to implement the approved specifications or instructions. This may include redoing the affected sections. It does not include new requests, preference changes, new content, or changes to previously approved work. Partner will report a defect under Section 8.8. Defects reported within 30 days after Go-Live are corrected under this section. For a defect found later, Ghostwright corrects it at no charge if it results from Ghostwright's own error, and otherwise treats the fix as a content edit or quoted work.

13.3 Causation. Responsibility follows what caused the problem. Ghostwright is not responsible for an independent third-party outage or a Client-side issue that Ghostwright did not cause. Ghostwright is not excused for its own configuration or implementation error merely because a third-party platform is involved.

13.4 No indirect losses. Neither party is liable to the other for indirect, incidental, or consequential damages, including lost profits, lost leads, lost revenue, and the value of any job or project a lead might have become.

13.5 Liability cap. Each party's total liability for all claims about a Site is limited to the fees Partner paid or owed Ghostwright for that Site in the 12 months before the claim. The limit applies to each Site separately. It does not apply to payment obligations, intentional misconduct, breach of confidentiality, or the indemnities below.

13.6 Partner indemnity. Partner will defend and reimburse Ghostwright for third-party claims arising from Client content, from materials or instructions Partner or its Client supplied, or from Partner's marketing, pricing, billing, or regulatory conduct, except to the extent the claim was caused by Ghostwright's own conduct.

13.7 Ghostwright indemnity. Ghostwright will defend and reimburse Partner for third-party claims that Ghostwright's original code infringes intellectual property rights, and for third-party claims to the extent caused by Ghostwright's own conduct under Section 12.2. This does not cover Client content, supplied materials, generated or stock images, or third-party components.

13.8 Claims procedure. The party seeking protection under Section 13.6 or 13.7 will:

- give the other party prompt written notice of the claim (late notice reduces the other party's duty only to the extent it was harmed by the delay);
- let the other party control the defense and settlement, with counsel reasonably acceptable to the protected party; and
- cooperate, at the other party's expense.

The protected party may take part in the defense with its own counsel at its own cost. Neither party will settle a claim in a way that admits fault by, or puts a payment or obligation on, the other party without that party's written consent, which will not be unreasonably withheld. A third party may name Ghostwright in a claim whatever this Agreement says; this Agreement allocates responsibility between Partner and Ghostwright.

13.9 A suspension made under Section 6.7 is not a breach by Ghostwright.

14. Confidentiality, data, and security

14.1 Each party will keep the other's confidential information private and use it only to carry out this Agreement. Confidential information includes the terms of this Agreement and Partner's pricing and margins. It does not include information that is public, already known, or independently developed.

14.2 Form submissions. Contact-form submissions are sent through EmailJS to the recipient address in the Client's EmailJS account. Ghostwright does not receive submissions from a Site's contact forms. They go directly to the Client's recipient address and do not pass through or remain in Ghostwright's systems, email, logs, or backups. The Intake is different (see Section 14.3). EmailJS and any other provider may store message content, logs, or attachments under their own terms and the Client's account settings. Partner and the Client are responsible for those settings and for their own retention of submissions. Files delivered through a form to the Client belong to the Client. If Ghostwright receives submission data by accident, it will delete it within 30 days and will not use it.

14.3 Ghostwright receives each Intake by email through its own EmailJS account. Files uploaded with an Intake are stored with Ghostwright's file-storage provider under random file names, and Ghostwright deletes them about 90 days after Go-Live, other than material the Site itself uses. Ghostwright will use personal information in Intakes to build and maintain Sites. It will not sell it, will protect it with reasonable security, and may share it with vendors it needs (such as hosting and form tools). Partner is responsible for any consents it needs from its Clients.

14.4 Within 60 days after a Site is cancelled or this Agreement ends, and on Partner's request, Ghostwright will delete Client personal data it holds. Exceptions are records it must keep for legal or billing reasons and the backup described in Section 11.9.

14.5 Accounts and credentials. The Client owns and controls its domain registrar account and its EmailJS account. Ghostwright may receive temporary access to either one, only for setup. Ghostwright will protect any credentials it receives, use them only for setup, and not keep them longer than needed. Partner and the Client will change or revoke temporary access when it is no longer needed. Each party protects the credentials it controls.

14.6 Suspected compromise. If either party learns or suspects that a credential or account connected to a Site has been compromised, it will tell the other by email as soon as it can. If Ghostwright learns of a security incident affecting Client data, it will tell Partner within 72 hours. Ghostwright investigates and fixes a compromise caused by Ghostwright's own error at no charge. Other investigation or remediation work is quoted separately.

15. Term and termination

15.1 This Agreement starts on the Effective Date and continues until terminated. There is no minimum term or minimum volume.

15.2 Partner may end this Agreement on 30 days' written notice. Sites stay online until the notice period ends, unless Partner cancels them earlier under Section 11.

15.3 Ghostwright may end this Agreement, without cause, on 60 days' written notice. Sites stay online through that period, and Partner may complete the Buyout Steps for any Site during it under Section 11.10.

15.4 Either party may end this Agreement if the other materially breaches it and does not fix the breach within 15 days after written notice. Ghostwright may also end it for non-payment as described in Section 6.7.

15.5 When this Agreement ends, unpaid amounts become due immediately, and each Site is cancelled under Section 11 at the end of the then-current paid month or the end of any notice period, whichever is later. Sections 6, 7.1, 10, 11.3 to 11.10, 13, 14, and 16 continue to apply.

16. General terms

16.1 The parties are independent contractors. This Agreement does not create a partnership, agency, or employment relationship.

16.2 Arizona law governs this Agreement, without regard to its conflict-of-law rules. Before filing a lawsuit, the parties will try in good faith to resolve a dispute for 30 days after written notice. Any lawsuit must be brought in the courts of Yavapai County, Arizona.

16.3 Partner may not assign this Agreement without Ghostwright's written consent. Ghostwright may assign it, on notice, to a business entity it owns or controls (such as an LLC) or to a successor to its business.

16.4 Notices must be in writing and sent by email to the addresses in Exhibit B. They take effect on the next Business Day.

16.5 Changes to this Agreement must be in writing and agreed by both parties, except fee changes under Section 6.9.

16.6 This Agreement, including its exhibits and the completed Launch Checklist, is the parties' entire agreement on its subject and replaces earlier discussions. The Terms of Use on Ghostwright's websites apply to use of those websites. If they conflict with this Agreement, this Agreement controls.

16.7 If part of this Agreement is unenforceable, the rest stays in effect. A delay in enforcing a right is not a waiver. Neither party is liable for delays caused by events beyond its reasonable control, other than payment. Partner may sign by hand or electronically.

16.8 Signing and acceptance. This is Version 1.1 of the Agreement. Partner signs the unedited Agreement and emails the signed copy to Ghostwright. Ghostwright does not sign. Ghostwright accepts by confirming receipt in writing, and the Agreement takes effect on the date of that confirmation. Ghostwright will not set up an Intake subdomain for a Partner, or accept an Intake from it, before then. If Partner changes any text before signing, the changes do not bind Ghostwright unless Ghostwright agrees to them in writing.

Exhibit A: Fee schedule

Partner sets its own prices to Clients; the fees below are what Partner pays Ghostwright.

Fee	Amount	When it applies
Setup Fee	$149 per Site	Invoiced when Ghostwright receives a complete Intake; due before work begins; non-refundable once work begins
Monthly Fee	$25 per Active Site	Starts on the 1st of the month after the Billing Start Date; one bundled invoice on the 1st, due by the 8th
Late fee	$15 per invoice	Invoice unpaid after the 15th
Additional revision round	$75 per round	After the two included rounds; invoiced when requested
Source-code buyout	$3,000 per Site	Available at any time for an active Site. For a cancelled Site, Buyout Steps must be completed within 30 days after Ghostwright receives the cancellation notice. Not reduced by fees already paid

Fee	Amount	When it applies
Form-failure credit	One month of the EmailJS upgrade cost	Only for a Ghostwright-Caused Form Failure that reaches the plan limit; credited on the next invoice (Section 8.14)

Exhibit B: Partner details and signature

Ghostwright's notice email is hello@ghostwrightweb.com. Partner completes the details below, then signs.

Legal name

Entity type and state (for example, Arizona LLC)

Notice email

Billing email (invoices)

Authorized contacts for feedback and edit requests (names and emails)

Communication option under Section 9.6 (1 or 2)

If Option 2, the mailbox address

Signature. By signing below, Partner agrees to this Agreement, and the person signing confirms they are authorized to sign for Partner. Ghostwright does not sign (see Section 16.8).

Partner signature

Name and title

Date